

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
WILLIAM SAWYER,

Plaintiff,

-against-

CITY OF NEW YORK, DETECTIVE MICHAEL
SOGLUIZZO, BADGE NUMBER UNKNOWN,
AND SEVERAL UNIDENTIFIED POLICE
OFFICERS ASSIGNED TO THE 103RD PRECINCT,Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates Queens
County as the place of trial.Basis of venue is place
of occurrence.**SUMMONS**Plaintiff resides at
1554 East 49th Street
Brooklyn, New York 11234

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
January 7, 2015

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.

By: Tracie A. Sundack, Esq.

Attorneys for Plaintiff

WILLIAM SAWYER

19 Court Street, 3rd Floor

White Plains, New York 10601

(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007DETECTIVE MICHAEL SOGLUIZZO,
BADGE NUMBER UNKNOWN, c/o
103rd Precinct
168-02 P.O. Edward Byrne Avenue
Jamaica, New York 11432

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
WILLIAM SAWYER,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, DETECTIVE MICHAEL
SOGLUIZZO, BADGE NUMBER UNKNOWN,
AND SEVERAL UNIDENTIFIED POLICE
OFFICERS ASSIGNED TO THE 103RD PRECINCT,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff WILLIAM SAWYER by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, respectfully alleges as follows:

1. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled The New York City Police Department, including all the police officers thereof.

3. That at all times hereinafter mentioned Defendant DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.

4. That at all times hereinafter mentioned Defendant DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.

5. That at all times hereinafter mentioned Defendant DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Queens, City of New

York, and under the authority of his office as a police officer for said county and city.

6. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT were employed by Defendant CITY OF NEW YORK as police officers.

7. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT acted within the scope of their employment for Defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Queens, City of New York, and under the authority of their office as police officers for said county and city.

9. At all relevant times, Plaintiff WILLIAM SAWYER was lawfully inside Apartment 7C, 106-35 159th Street, Jamaica, New York (hereinafter the “premises”).

10. That on November 7, 2013, at approximately 6:00 A.M., Plaintiff WILLIAM SAWYER was in the bathroom of the premise when he was accosted by members of the New York City Police Department including, but not limited to, Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, who suddenly and without warning, forcibly opened the locked bathroom door.

11. That on the aforementioned date, time and place, Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, without just cause or provocation, repeatedly struck Plaintiff WILLIAM SAWYER. As a result of this unprovoked assault, Plaintiff WILLIAM SAWYER sustained injuries to, *inter alia*, his head, shoulders, and ribs.

12. Following the unprovoked and unwarranted assault, Defendants DETECTIVE

MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, handcuffed Plaintiff WILLIAM SAWYER, and placed him under arrest for, upon information and belief, Criminal Possession of a Controlled Substance, despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

13. That Plaintiff WILLIAM SAWYER was transported to the 103rd Precinct (168-02 P.O. Edward Byrne Avenue, Queens, New York 11432) and thereafter transported to Queens Central Booking.

14. That Plaintiff WILLIAM SAWYER was transported from Queens Central Booking to Queens Hospital Center (82-68 164th Street, Jamaica, New York 11432) for initial treatment of his injuries. Thereafter, Plaintiff WILLIAM SAWYER was returned from Queens Hospital Center to Queens Central Booking for arraignment. Following arraignment, Plaintiff WILLIAM SAWYER was released on his own recognizance.

15. That Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT initiated criminal proceedings against Plaintiff WILLIAM SAWYER despite Defendants' knowledge that they lacked probable cause to do so.

16. That Plaintiff WILLIAM SAWYER was held, detained and imprisoned from November 7, 2013, to November 9, 2013, by Defendants before being released.

17. That on or about August 14, 2014, all charges against Plaintiff WILLIAM SAWYER related to the complained of incident were dismissed.

18. That on or about October 10, 2014, within 90 days of the aforementioned dismissal, but more than 30 days prior to the commencement of this action, Plaintiff WILLIAM SAWYER duly presented, served, and filed a Notice of Claim for malicious prosecution, in writing, upon Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

19. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT.

20. That on November 18, 2014, the examination of Plaintiff WILLIAM SAWYER was conducted pursuant to section 50-h of the General Municipal Law.

a municipal hearing in

21. That on December 9, 2014, Plaintiff WILLIAM SAWYER filed a Notice of Petition and Verified Petition in the Supreme Court of the State of New York (County of Queens) seeking permission to file a late Notice of Claim for, *inter alia*, false arrest and false imprisonment in this matter. Plaintiff's Petition was assigned Index Number 709415/14, and is currently pending before the court.

22. This action is commenced within one year and ninety days after the cause of action arose.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

23. Plaintiff WILLIAM SAWYER repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

24. The level of force employed by Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT was objectively unreasonable, and in violation of Plaintiff WILLIAM SAWYER's constitutional rights.

25. As a result of the aforementioned conduct of Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, Plaintiff WILLIAM SAWYER was subjected to excessive force and sustained physical injuries.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

26. Plaintiff WILLIAM SAWYER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

27. That at the aforementioned time and place, Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, placed Plaintiff WILLIAM SAWYER under arrest, despite Defendants' knowledge that they lacked probable cause to do so.

28. That Plaintiff WILLIAM SAWYER had not committed any offense and Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

29. That Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT were aware that probable cause did not exist for the arrest and detention of Plaintiff WILLIAM SAWYER and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff WILLIAM SAWYER and such actions were committed in bad faith.

30. That, in all of the wrongful acts above alleged, Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff WILLIAM SAWYER and such actions were committed in bad faith.

31. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff WILLIAM SAWYER was deprived of the rights and immunities secured to him under

the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

32. As a further result of the above-described acts, Plaintiff WILLIAM SAWYER was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

33. Plaintiff WILLIAM SAWYER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

34. That Plaintiff WILLIAM SAWYER was falsely imprisoned from November 7, 2013, to November 9, 2013, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

35. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT intended to confine Plaintiff WILLIAM SAWYER and Plaintiff WILLIAM SAWYER was conscious of the confinement, and Plaintiff WILLIAM SAWYER did not consent to the confinement.

36. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff WILLIAM SAWYER and damaging Plaintiff WILLIAM SAWYER in his reputation and depriving him of his liberty.

37. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff WILLIAM SAWYER suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

38. Plaintiff WILLIAM SAWYER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

39. That Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT misrepresented and falsified evidence before the District Attorney.

40. That Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT did not make a complete and full statement of facts to the District Attorney.

41. That Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT withheld exculpatory evidence from the District Attorney.

42. That Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT were directly and actively involved in the initiation of criminal proceedings against Plaintiff WILLIAM SAWYER.

43. That Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT lacked probable cause to initiate criminal proceedings against Plaintiff WILLIAM SAWYER.

44. That Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT acted with malice in initiating criminal proceedings against Plaintiff WILLIAM SAWYER.

45. That Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT were directly and actively involved in the continuation of criminal proceedings against Plaintiff WILLIAM SAWYER.

46. That Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT lacked probable cause to continue criminal proceedings against Plaintiff WILLIAM SAWYER.

47. That Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT acted with malice in continuing criminal proceedings Plaintiff WILLIAM SAWYER.

48. That Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT misrepresented and falsified evidence throughout all phases of the criminal proceeding.

49. That, notwithstanding the perjurious and fraudulent conduct of Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, on August 14, 2014, the criminal proceedings were terminated in Plaintiff WILLIAM SAWYER's favor.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY**

50. Plaintiff WILLIAM SAWYER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

51. Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

52. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

53. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff WILLIAM SAWYER.

54. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff WILLIAM SAWYER as alleged herein.

55. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff WILLIAM SAWYER as alleged herein.

56. Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff WILLIAM SAWYER's constitutional rights.

57. All of the foregoing acts by defendants deprived Plaintiff WILLIAM SAWYER of

federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. Not to have cruel and unusual punishment imposed upon him;
- E. To receive equal protection under the law.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE**

58. Plaintiff WILLIAM SAWYER repeats, reiterates and realleges each and every allegation contained in this complaint.

59. Each and every individual Defendant Police Officer had an affirmative duty to intervene on Plaintiff WILLIAM SAWYER's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

60. As a result of the aforementioned conduct of the individual Defendants, Plaintiff WILLIAM SAWYER's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

**AS AND FOR A SEVENTH CAUSE OF ACTION UNDER
NEW YORK STATE LAW FOR ASSAULT**

61. Plaintiff WILLIAM SAWYER repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

62. The aforementioned acts of Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, placed Plaintiff WILLIAM SAWYER in apprehension of imminent harmful and offensive bodily contact.

63. As a result of the conduct of Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, Plaintiff WILLIAM SAWYER. has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and

humiliation.

**AS AND FOR A EIGHTH CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR BATTERY**

64. Plaintiff WILLIAM SAWYER repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

65. Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, touched Plaintiff WILLIAM SAWYER in a harmful and offensive manner.

66. Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, did so without privilege or consent from Plaintiff WILLIAM SAWYER.

67. As a result of the conduct of Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, Plaintiff WILLIAM SAWYER has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR AN NINTH CAUSE OF ACTION FOR
FALSE ARREST UNDER NEW YORK STATE LAW**

68. Plaintiff WILLIAM SAWYER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

69. Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, arrested Plaintiff WILLIAM SAWYER in the absence of probable cause and without a warrant.

70. As a result of the aforesaid conduct by Defendants CITY OF NEW YORK, DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, Plaintiff WILLIAM SAWYER was subjected to an illegal, improper and false arrest by the Defendants and

taken into custody and cause to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings.

71. The aforesaid actions by Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT constituted a deprivation of Plaintiff WILLIAM SAWYER's rights.

**AS AND FOR A TENTH CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER NEW YORK STATE LAW**

72. Plaintiff WILLIAM SAWYER repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

73. As a result of the foregoing, Plaintiff WILLIAM SAWYER was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

74. Plaintiff WILLIAM SAWYER was conscious of said confinement and did not consent to same.

75. The confinement of Plaintiff WILLIAM SAWYER was without probable cause and was not otherwise privileged.

76. As a result of the aforementioned conduct, Plaintiff WILLIAM SAWYER has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**AS AND FOR A ELEVENTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER NEW YORK STATE LAW**

77. Plaintiff WILLIAM SAWYER repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

78. On or about November 7, 2013, Defendant CITY OF NEW YORK, its agents, servants, and employees, including Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, commenced a criminal proceeding against Plaintiff WILLIAM

SAWYER, and falsely and maliciously, and without probable cause, charged Plaintiff with crimes.

79. Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, with the consent and participation of one another, continued said proceeding despite the fact that they knew or should have known that Plaintiff WILLIAM SAWYER had not committed any crimes, that there were no exigent circumstances justifying a warrantless arrest, and that there was no need for the arrest and imprisonment of Plaintiff.

80. Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, were directly and actively involved in the initiation of criminal proceedings against Plaintiff WILLIAM SAWYER.

81. Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT lacked probable cause to initiate criminal proceedings against Plaintiff WILLIAM SAWYER.

82. Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, were motivated by actual malice in initiating criminal proceedings against Plaintiff WILLIAM SAWYER.

83. Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, misrepresented and falsified evidence before the District Attorney.

84. Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, did not make a complete and full statement of facts to the District Attorney.

85. Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE

103RD PRECINCT, withheld exculpatory evidence from the District Attorney.

86. Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT were directly and actively involved in the continuation of criminal proceedings against Plaintiff WILLIAM SAWYER.

87. Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, lacked probable cause to continue criminal proceedings against Plaintiff WILLIAM SAWYER.

88. Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, were motivated by actual malice in continuing criminal proceedings against Plaintiff WILLIAM SAWYER.

89. That, notwithstanding the perjurious and fraudulent conduct of Defendants, the criminal proceedings were terminated in Plaintiff WILLIAM SAWYER's favor.

**AS AND FOR A TWELFTH CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION UNDER NEW YORK STATE LAW**

90. Plaintiff WILLIAM SAWYER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

91. That Defendant CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the Defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that

Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

92. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION UNDER NEW YORK STATE LAW**

93. Plaintiff WILLIAM SAWYER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

94. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff WILLIAM SAWYER. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

95. The failure of Defendant CITY OF NEW YORK, to train, supervise, discipline or in any other way control Defendants DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, in the exercise of their employment functions and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences

as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff WILLIAM SAWYER.

96. As a result of the foregoing, Plaintiff WILLIAM SAWYER is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00)

WHEREFORE Plaintiff WILLIAM SAWYER demands judgment against Defendants CITY OF NEW YORK, DETECTIVE MICHAEL SOGLUIZZO, BADGE NUMBER UNKNOWN, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 103RD PRECINCT, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
January 7, 2015



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.

By: Tracie A. Sundack, Esq.

Attorneys for Plaintiff

WILLIAM SAWYER

19 Court Street, 3rd Floor

White Plains, New York 10601

(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
January 7, 2015



TRACIE A. SUNDACK